Docusign Envelope ID: 0D5E1986-9020-4F47-BECB-124162077E76

26 June 2025

Luzhu Yu
13 Tainton Road
Burwood East VIC 3151

PRIVATE & CONFIDENTIAL

Dear Luzhu

Your employment with Cargill Australia Limited

We are very pleased to confirm our offer of employment with Cargill Australia Limited (**Company**). As you look toward building your future, we hope you will consider this opportunity a gateway to a career unlike those offered anywhere else. As a diversified, global organisation, Cargill offers you an exciting future. Our purpose is to be the global leader in nourishing people. You will be joining an organisation that demonstrates its investment in the development and growth of employees like you.

Please read this letter and any documents enclosed with it carefully, as this offer is conditional on you agreeing to the terms and conditions of this letter. Failure to do so may delay your start.

Once you have signed and returned a copy of this letter, the terms and conditions set out in this letter will commence on and from 15 July 2025 (**Commencement Date**) or as agreed otherwise and will continue until terminated in accordance with the terms of this letter.

We note that our offer of employment is contingent upon you providing the Company with proof of employment eligibility in Australia.

You acknowledge that the Company's decision to employ you was based on the qualifications, experience, and expertise which you represented that you had as part of your application for the position. You acknowledge that your employment may be immediately terminated in the event that any information relating to your qualifications, experience and/or expertise is found to be false or misleading.

For the purposes of this letter, **Related Person** means any related body corporate of the Company (as that term is defined in the *Corporations Act 2001* (Cth)).

Your Location

1. From your Commencement Date you will be based at the Company's offices in Melbourne. Your place of work may change during your employment, depending

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upon Company requirements and changes of locations of offices, departments, business units and functions, subject to consultation with you.

2. As part of your career development and/or in response to Company needs, you may be asked to relocate intrastate, interstate, or internationally. Every effort will be made to enable you to increase your skills and knowledge locally however we acknowledge that not all development opportunities can be filled locally.

3. If you are required to relocate, the Company will provide relocation assistance to you and your family. In such circumstances, you will be required to complete and sign the Cargill Relocation Costs Reimbursement Repayment Agreement.

Your Position

4. You will be appointed as a fulltime employee. Your position is Product Line Support Specialist and this position currently reports to the Product Development & Support Lead. The Company may alter the current reporting structure from time to time. Any such change will not constitute a new or varied contract of employment.

5. If the Company promotes you and/or your remuneration, position, duties, responsibilities, reporting line and/or status change, the terms of this letter will continue to apply to your employment.

Your Duties and Responsibilities

6. We require you to carry out all lawful directions and discharge such duties and functions as may be delegated or assigned to you. We expect that you will, to the utmost of your ability, promote the interests of and protect the property of the Company.

7. The duties and responsibilities contained in your Position Description Summary may be varied to allow the Company to respond to changes to its business requirements provided that any changes are consistent with your skills, qualifications, training and experience. If your duties and responsibilities are varied, there will be no termination of your employment and the terms and conditions of this letter will continue to apply to that new position. You agree that you will not claim or receive any compensation for any such change.

8. You must at all times act honestly and in a manner consistent with your employment with the Company. You agree to indemnify the Company against any loss or damage the Company suffers as a result of any dishonest act by you or any wilful misconduct in carrying out your duties.

9. You must make available to the Company all of your knowledge and skill to the extent that such knowledge and skill may benefit or advance the Company's business.

10. Nothing in this letter will be construed as limiting your duties of good faith or fidelity to the Company or any other duties you may have to the Company at common law, in equity or under the *Corporations Act 2001* (Cth).

Your Probation Period

11. The first six (6) months of your employment with the Company is a period for both you and the Company to assess suitability for the role, performance and commitment to each other. During this probationary period your employment may be terminated

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by either you or the Company on one week's notice or, in the case of the Company, a payment in lieu of that notice.

Your Hours of Work

12. Your ordinary hours of work are 37.5 hours per week.

13. You will need to work such reasonable additional hours as may be necessary for the effective performance of your role. Your total compensation is calculated to reflect both your ordinary hours and any additional, extended or weekend hours you may need to work in order to complete your responsibilities and to meet the Company's operational requirements. The Company will give as much notice as possible if the need for you to work additional hours arises.

Your Compensation

14. The Company has a total compensation philosophy. Your total compensation incorporates your annual salary (including any amount salary sacrificed in accordance with Company policy), all amounts you become entitled to in accordance with the superannuation guarantee contributions, plus any potential incentive reward or other amounts paid to you from time to time (**Total Compensation**).

15. Your annual salary will be $85,000 gross. The Company's contribution to superannuation will be based on the annual salary and is additional to that amount.

16. If any industrial instrument (including any modern award or enterprise agreement) applies to your employment,

    (a) Your Total Compensation is in full satisfaction of:

        (i) your entitlements (including without limitation, arrangements for when work is performed (including breaks), minimum rate of pay, overtime rates, penalty rates, shift work, loadings (including leave loading) and allowances under the relevant industrial instrument;

        (ii) all hours which you work; and

        (iii) all undertakings given by you in these terms,

    (b) the relevant industrial instrument applies to your employment as a matter of law and does not form part of this letter of offer.

17. Your salary is paid on a monthly basis. Currently this is paid on the 15th of the month, for the calendar month, into your nominated account, however the Company reserves the right to change this pay date by provision of reasonable notice. Your first salary payment can only be made following your commencement of employment and upon receipt of your completed new employee paperwork by Human Resources.

18. You may be entitled to participate in the Cargill Incentive program, which is at Manager discretion and no guarantees can be made that you will receive an incentive payment.

Your Superannuation Fund

19. The Company's default superannuation fund is the Cargill Superannuation Plan, which is a sub plan within the Corporate Superannuation Division of the Mercer Retirement Trust. If you do not return the enclosed form, "Choice of superannuation

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fund; Standard choice form", with your onboarding paperwork, the Company will make superannuation contributions into this fund.

20. If you choose to join this fund, your type of membership can be non-contributory or contributory in this accumulation scheme. Company contributions will be made by applying the minimum statutory rate to your gross salary up to the maximum contribution base in accordance with the requirements of the *Superannuation Guarantee (Administration) Act 1992* (Cth).

21. You may make additional pre-tax contributions to superannuation at your discretion, provided that total employer and salary sacrifice contributions do not exceed the limits provided by the ATO Age Based Contribution Limits.

22. Non-contributory membership includes disability and death insurance coverage. The benefit plan booklet for this scheme is enclosed.

23. Making additional pre-tax contributions is a matter of your personal choice about which Cargill cannot make recommendations and can give no warranty. We urge you to take financial advice as to your own circumstances and the appropriate level of additional pre-tax contributions you may choose to make, if any.

24. You may make additional post-tax superannuation contributions at your discretion.

25. In accepting this offer of employment and signing this letter you are consenting to the exchange of your personal information between the Company and the Trustees of the Superannuation Fund of your choice and their service providers in order to facilitate provision of benefits in the course of your employment and for the management of your Superannuation.

Your Performance Management Program/Objective Setting/Development Planning

26. The Company will endeavour to perform a formal appraisal of your performance and objective setting for the future at least on an annual basis.

27. Performance Management is a shared responsibility between the Company, managers and employees. It is a framework through which individual and organizational goals are aligned and executed. You can perform best when you understand your manager's expectations and we are committed to providing you with ongoing coaching and performance feedback. A development plan is created at this time to ensure we are equipping you with skills development to be successful.

Your Leave Entitlements

Annual Leave

28. You will be entitled to paid annual leave in accordance with the *Fair Work Act 2009* (Cth) (**FW Act**). Full-time employees will receive four weeks' paid annual leave per year of full-time service. Part-time employees will receive a pro rata entitlement.

29. Annual leave accrues progressively and accumulates from year to year.

30. There is a mutual responsibility between the Company and you that leave be taken. The accumulation of large amounts of leave should not occur. The Company may direct you to take annual leave where you have accrued excessive annual leave, in accordance with the Annual Leave policy, as amended from time to time.

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Personal Leave (Sick & Carer's Leave)

31. You will be entitled to paid personal/carer's leave in accordance with the FW Act.

32. You will be entitled to 12 days paid personal/carer's leave. Part-time employees will receive a pro rata entitlement, subject to minimum statutory requirements.

33. Personal/carer's leave accrues progressively and accumulates from year to year.

34. In the event that you are absent from work on account of illness, injury or disability you will be entitled to take a period of paid personal leave. We require that you give notice of your intention to take sick leave as soon as is reasonably practicable. If you are absent for any period exceeding two (2) days on account of illness or disability you must provide your Manager with a certificate from a qualified medical practitioner or a registered health practitioner.

35. You agree that you will provide additional medical evidence or information in response to a reasonable request, to enable the Company to understand a medical condition and its potential workplace impact.

36. You are entitled to use accrued paid personal leave as leave to care for or support a member of your immediate family or household because that person has a personal illness or injury, or is affected by an unexpected emergency. If you have exhausted your entitlement to use your paid personal/carer's leave for this purpose, you are entitled to unpaid carer's leave in accordance with the FW Act.

37. You must give notice of intended carer's leave as soon as reasonably practicable. The Company may require evidence of your need for carer's leave, in the form of either a medical certificate or a statutory declaration by you.

Parental/Compassionate/Long Service Leave

38. You will be entitled to parental, compassionate and long service leave in accordance with applicable legislation or any applicable policy of the Company as varied from time to time.

39. You are entitled to paid compassionate leave in accordance with the FW Act if a member of your immediate family or household has a life-threatening illness or injury, or dies. The company may request evidence of your need for compassionate leave.

Family and Domestic Violence Leave

50. You are entitled to ten days paid family and domestic violence leave each year in accordance with the FW Act. You may take the leave if you need to do something to deal with the impact of family and domestic violence and it's impractical to do so outside your ordinary hours of work.

51. The Company may reasonably request that you provide evidence of the basis of the leave.

52. To avoid doubt, this section does not prevent you and the Company agreeing that you may take more than 10 days of leave (paid or unpaid personal leave) to deal with the impact of family and domestic violence.

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Novated Leasing

53. As an employee of the Company you are able to approach the leasing provider directly and, if you meet their credit application requirements, arrange for the lease of a motor vehicle with payments made through a pre-tax salary deduction.

Workplace safety, Smoking and Consumption of Drugs/Alcohol

54. You must exercise reasonable care and diligence in the performance of your duties and comply with all reasonable instructions to protect your own health and safety and the health and safety of others.

55. To maintain the health and safety of all employees, visitors, contractors, and customers, smoking and consumption of drugs/alcohol are not permitted and alcohol cannot be stored at any of the Company's locations. You must not consume or possess any substance (illegal or legal) that is likely to impair your ability to carry out your duties at any time at your location, or impact upon workplace health and safety without the express prior approval of Company management.

56. You agree that the Company can require that you attend drug and alcohol testing or another medical examination to establish that you are fit for work at any time. Dress

57. Working conditions vary considerably around the Company. You are expected to dress appropriately and in compliance with the Company's business and safety requirements.

Skill & Knowledge Development

58. The Company recognises the value of continuous improvement in the skills and knowledge of individuals. The Company supports the ongoing education of its employees and in turn has an expectation that employees will seek and respond to, opportunities to increase their overall skills and knowledge whilst employed at the Company.

Information Technology

59. On commencement with the Company you will need to complete a Corporate Security Information Session that will, in more detail advise of your responsibilities in this area.

Information Technology Use

60. The Company provides its employees with the necessary information technology to facilitate communication among Company personnel, clients and other parties in connection with the Cargill business. You will be expected to use this technology prudently and properly in a manner consistent with applicable legislation and within the guidelines of the Cargill Information Technology Use policy. Again your acceptance of this appointment is subject to the acknowledgment that you will read and comply with your obligations under the policy.

Your Employee Data

61. We must inform you that, as part of the administration of employee records, the Company has a human resources database in which your employment data will be stored securely and this may transfer information offshore (please see www.cargill.com for more information and also the **Cargill Global Data Privacy for Employment Information Policy** as amended from time to time). Your information

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will be transferred from the database to Cargill's Global Data Warehouse where authorised Cargill personnel may access it.

Conflicts of interest and outside activities

62. You must not, during the course of your employment, without the prior written approval of the Company, undertake any appointment position or work that:

    (a) results in you competing or having a conflict of interest with the Company; or

    (b) hinders the performance of your duties owed to the Company.

Confidentiality

63. It is not permitted, either during or after employment with the Company, to use, disclose or communicate to any person, firm or corporation in any manner whatsoever any trade secrets of the Company or any confidential information of the Company except as required by your duties to the Company, by law or by court order.

64. Every employee is obligated to maintain the confidentiality of the Company's proprietary business information and its trade secrets. This information includes, but is not limited to, such things as strategy documents, market surveys or databases, market and competitor analyses, customer proposals, financial information, cost reduction initiatives, meeting agendas, reports and presentations, personnel information and information regarding new products and processes (**Confidential Information**). This obligation continues after termination of employment, regardless of the reason for termination (voluntary or involuntary, including upon retirement). No departing employee may retain copies or originals (paper or electronic) of such information without the Company's express written consent.

65. Your obligations under this clause will continue to apply after the termination of your employment for any reason.

Intellectual property

66. All intellectual property rights in works (including but not limited to computer software, programmes, materials, manuals, records, procedures, systems, marketing techniques, plans and specifications) conceived, developed, written or otherwise created by you in the course of your employment with the Company, whether during or outside your normal working hours, vest solely in the Company and you will, at the request and expense of management, execute such assignments and assurances as may be reasonably necessary to perfect ownership by the Company of those rights.

67. To the extent permissible by law, you consent to any act or omission which would otherwise constitute infringement of your moral rights in relation to intellectual property created by you in the course of your employment.

68. Your obligations under this clause will continue to apply after the termination of your employment for any reason.

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Protection of Interests

69. You acknowledge that in the course of your employment, you will have access to Confidential Information; knowledge of, and influence over, customers and suppliers; a position of leadership enabling you to have a degree of influence over employees; and as a consequence, it is necessary and reasonable for the Company to protect its Confidential Information, staff, customer and supplier connections, goodwill and business.

70. You agree that you will not, without the Company's prior written consent, either directly or indirectly, on your own behalf or on behalf of anyone else, at any time during the Restraint Period:

    (a) provide assistance to, be employed by or otherwise engaged, concerned or interested in, any business carried on in the Restraint Area by any person, company or other undertaking which is directly or indirectly competitive with any part of the business carried on by the Company as at the date of termination and with which you were involved in the last 12 months of your employment;

    (b) induce, encourage, solicit or entice any employee or contractor of the Company or any Related Person to act in breach of, or terminate, their contract with the Company or any Related Person (as applicable);

    (c) induce, encourage, solicit or entice any person, company or other undertaking who or which is or has been a customer or supplier of the Company or a Related Person with whom you have had dealings with at any time during the last 12 months of your employment, to end or restrict their trade relationship with the Company or any Related Person; or

    (d) undertake work in a comparable position to that you hold with the Company or in a capacity in which Confidential Information acquired by you will be relevant to the performance of your duties for any current customer of the Company or of any Related Person or their businesses or subcontractors for whom you have specifically worked during your employment, unless you have the written consent of the Company.

71. In this clause, **Restraint Period** means:

    (a) Six (6) months following the termination of your employment for any reason.

72. The Company will pay your regular base salary only (less any withholdings and deductions required by law) in respect of the Restraint Period.

73. In this clause, **Restraint Area** means:

    (a) Any country in the world;

    (b) Any country in the Asia-Pacific region;

    (c) Australia.

74. Each restriction in paragraph 70 in combination with each of the Restraint Periods and where relevant each Restraint Area, is to be construed as, and have effect as, a separate, distinct, severable and independent restriction from each other restriction.

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75. If any one or more of the restrictions specified in paragraph 70 when combined with each of the Restraint Periods and, where relevant, each of the Restraint Areas, constitutes an undue restraint of trade, or is in any way unenforceable, invalid or illegal, such restriction is to be read down to remedy any such invalidity. If this is not possible, the invalid restriction will be severed from this agreement and will not affect any other restriction in this agreement.

76. You acknowledge and agree that:

    (a) the restrictions in paragraph 70 are fair and reasonable in all the circumstances and are reasonably necessary to protect the business, reputation and goodwill of the Company and any Related Person;

    (b) you have had the opportunity to take legal advice as to the meaning and effect of paragraph 70;

    (c) damages may not be an adequate remedy to protect the interests of the Company or any Related Person affected, and a breach of this post-termination restraint may result in the Company seeking an injunction against you;

    (d) the restrictions set out above will not preclude you from owning less than 5% in the shares of any publicly listed company; and

    (e) the restrictions in paragraph 70 will survive the termination of your employment and will remain in full force and effect after the termination of your employment.

Termination of Employment

77. After your probationary period your employment may be terminated by the Company or by you on four weeks' notice in writing. If you are aged over 45 years and have completed at least five (5) years' continuous service with the Company then you will be entitled to five (5) weeks' notice in accordance with the FW Act.

78. The Company may pay you salary in lieu of all or part of the notice period. Payment in lieu of notice will be made at your full rate of pay for the hours you would have worked had your employment continued until the end of your notice period. If you do not give the full notice required to terminate your employment, you authorise the Company to deduct the value of the notice period from any monies owing to you upon termination.

79. The Company may terminate your employment without any notice or payment in lieu if you:

    (a) commit any gross default, misconduct or neglect in the discharge of your duties or any serious or persistent breach of any of the provisions of this letter;

    (b) refuse to obey and comply with the lawful direction of the Company as to the performance of any duty;

    (c) consistently act in a manner which may tend to injure the reputation and interests of the Company; or

    (d) commit any other act or omission justifying summary dismissal at common law.

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80. Without limiting the generality of this provision the Company may dismiss you for any serious or persistent breach of this contract of employment.

81. The Company can suspend you from your duties on full salary at any time.

Redundancy

82. If your employment is terminated due to redundancy, any redundancy payments will be made in accordance with the Company's redundancy policy.

Return of Property

83. Upon termination, you must return to the Company all of the Company's property in your possession or control.

Repay Amounts Owing

84. All sums, which you owe to the Company, must be repaid on termination of your employment, or may be deducted by the Company from any amount, which it is obliged to pay to you to the extent permitted by law. You agree to execute any written authorisation necessary to enable this to occur.

Stand down

85. The Company may deduct payment for any part of a day during which you cannot be usefully employed because of any strike, breakdown of machinery or any stoppage or work for any cause for which the Company cannot reasonably be held responsible.

Company Terms, Conditions & Policies

86. Many of the benefits and conditions of employment set out in this letter are derived from written Company policies and guidelines.

87. By signing this letter, you are agreeing and acknowledging that, from the Commencement Date, you will make yourself aware of the Company's policies and procedures, which are in operational effect at the commencement of your employment and will be familiar with all of the Company's policies, as amended from time to time.

88. You agree that you will at all times comply with the terms of all of the Company's policies (howsoever named) as varied from time to time, and abide by all of the Company's procedures and professional service standards, as in place from time to time. You are bound by, and must comply with, the Company’s policies and procedures, as amended from time to time. The Company may at its discretion, periodically vary, change or terminate existing policies and procedures and may, when required, introduce new policies and procedures.

89. The Company's policies and procedures are for the Company's benefit solely and create no right or entitlement in you. The Company's policies and procedures do not form part of this Agreement.

90. Policies may be viewed on the Cargill Intranet.

Recovery of overpayments

91. In the event of an overpayment, you will provide written authorisation to the Company to deduct any amounts owed to the Company and/or mistakenly paid by the

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Company to you from payments required to be made by the Company. Alternatively you will repay the full specified amount to the Company immediately upon request.

Miscellaneous

92. Your employment will be subject to any applicable statute or regulation such that if any term or condition of employment set out herein is inconsistent with the terms of any such statute or regulation, then the terms of the statute or regulation shall prevail and the terms and conditions set out herein will, to the extent of the inconsistency, be inoperative.

93. The Company and you each accept that the nature of your role and levels of responsibility may be significantly varied throughout our employment relationship. It is agreed that irrespective of any such variations, by negotiation or otherwise, the terms and conditions set out in this letter will continue to apply as contractual provisions, unless otherwise amended in writing by agreement between the parties.

94. The terms set out in this letter may only be varied by agreement in writing.

95. The terms and conditions set out in this letter, together with any enclosed documents represent the whole of the agreement between the parties. No other terms are to be implied into the agreement which would have the effect of adding to, diminishing, deleting or varying the terms and conditions set out in this letter.

96. Any term or part of a term of this letter which is held to be illegal, void or unenforceable will either be modified so that it is enforceable, or deemed ineffective to the extent only of that illegality or unenforceability, without invalidating the remaining terms or parts of a term of this letter.

97. The failure of the Company at any time to insist on performance of any term of condition of your employment is not a waiver of its right at any later time to insist on performance of that or any other term or condition of your employment.

98. Your employment will be governed by the laws of VIC and the Commonwealth of Australia and both you and the Company irrevocably submit to the jurisdiction of the courts of that state and the Commonwealth.

We are Eager to Hear From You

99. We are very excited about the prospect of you joining the Company. We realise that this is a very important decision, and we are committed to providing as much guidance and support as you need while considering our offer.

100. To accept or decline our offer, please indicate your formal acceptance to the terms and conditions contained in this letter of offer by signing, dating and returning the enclosed duplicate copy to Human Resources within five (5) working days of receipt of this offer.

101. You're in a position to create an exciting future and we'd like your future to be a part of the Company's. I trust you will contact me whenever you need help or have questions.

102. You will also shortly receive a New Employee Pack including:

- New Employee Details Excel Form
- Superannuation Standard Choice Form

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- Tax File Number Declaration Form
- Employee Confidentiality Agreement
- Fair Work Information Statement
- Cargill's Code of Conduct

Luzhu, I take this opportunity to welcome you to Cargill and wish you every success in your new position.

Your acceptance of this offer

103. If you have any queries concerning the contents of this letter, please contact me. Otherwise, if you accept the terms and conditions of employment as set out in this letter, please sign and return to me the enclosed duplicate letter within five (5) working days of receipt of this letter. You should keep the original of this letter with your records as it is an important document and you may wish to refer to it from time to time.

Yours sincerely,



Peter Tran
Talent Acquisition Lead, Australia
Cargill Australia Limited

I, Luzhu Yu, accept the above position and agree to the terms and conditions of engagement outlined above and contained in any attachments.

I acknowledge that I will read and comply with the requirements as to the protection and preservation of Confidential Information and related issues and as to the ownership and disclosure of Inventions and undertake to comply with those obligations.

I acknowledge that I will read and comply with the Information Technology Use Policy requirements as to the appropriate and inappropriate usage of technology and related issues and undertake to comply with Company policies that may vary from time to time.

Signature:..... Signed by: Luzhu Yu 889C56832CFF422... Date:..... 2/7/2025 .....

Luzhu Yu Initials: Initial LY Page 12 of 12